

[1 Edw. 7.] *Midland Counties Junction Railways* [Ch. cclii.]
(Sale) Act, 1901.



CHAPTER cclii.

An Act to make certain provision with reference to A.D. 1901.
the undertakings of the East and West Junction the
Evesham Redditch and Stratford-upon-Avon Junction
and the Stratford-upon-Avon Towcester and Midland
Junction Railway Companies. [17th August 1901.]

WHEREAS by the East and West Junction Railway Act 1864 26 & 27 Vict.
the East and West Junction Railway Company (hereinafter c. lxxvi.
called "the East and West Company") were incorporated and
authorised to make work and maintain a railway from Towcester in
the county of Northampton having a junction with the North-
ampton and Banbury Junction Railway (with power to use a
portion of that railway) to Old Stratford in the county of Warwick
having a junction with the Great Western Railway (Stratford and
Honeybourne Branch) and to create and issue a share capital of
three hundred thousand pounds with powers to borrow in respect
thereof the sum of one hundred thousand pounds :

And whereas by the East and West Junction Railway (Capital) 29 & 30 Vict.
Act 1866 the East and West Company were for the purpose of c. cxlii.
making and completing the railway aforesaid as a double line
authorised to raise a further share capital of three hundred
thousand pounds with power to borrow in respect thereof the
further sum of one hundred thousand pounds :

And whereas in the year one thousand eight hundred and sixty-
six the East and West Company were compelled to suspend the
execution of their works and by a scheme of arrangement between
the East and West Company and their creditors confirmed by
His Honour the Vice-Chancellor Sir William Milbourne James on
the seventh day of May one thousand eight hundred and sixty-nine
and enrolled in the High Court of Chancery on the thirteenth day
of July one thousand eight hundred and sixty-nine after reciting

A.D. 1901. — the Acts hereinbefore recited and also setting forth the debts and liabilities of the East and West Company and the state and condition of that Company's undertaking and the exercise by them of their capital and borrowing powers hereinbefore mentioned the said company were authorised to enter into a contract for the completion of their railway in the manner therein mentioned within a period of twenty-four months for a sum not exceeding two hundred and thirty thousand pounds and also in lieu of the sums of three hundred thousand pounds as share capital and one hundred thousand pounds as borrowed capital authorised to be raised by them under the East and West Junction Railway (Capital) Act 1866 to create and issue first debenture stock to the amount of four hundred thousand pounds bearing a fixed and perpetual preferential interest at the rate of five per centum per annum and being a first charge upon the undertaking and having priority over the then existing debentures and also to convert the then existing debentures of the East and West Company into one hundred thousand pounds second debenture stock bearing interest at the rate of six per centum per annum payable out of the net profits of the year and having priority over all other charges except the first debenture stock And also to create and issue third debenture stock not exceeding in amount one hundred thousand pounds bearing interest at the rate of six per centum per annum also payable only out of the net profits of the year and having a priority next after the second debenture stock aforesaid to be allotted to and taken at par by the outside creditors of the East and West Company in satisfaction of the amount of their respective debts And by the said scheme the East and West Company were authorised to issue their first debenture stock at a discount of twenty pounds per centum on the nominal amount thereof And also out of the proceeds of such debenture stock to pay interest at the above-mentioned rate on the said stock for three years and down to the expiration of twelve months after the completion of the railway :

And whereas by order of the Board of Trade dated the twenty-fifth day of June eighteen hundred and seventy the time limited for the completion of the railway in the Acts aforesaid was extended to the twenty-third day of June eighteen hundred and seventy-one :

34 & 35 Vict.
c. lxxxi.

And whereas by the East and West Junction Railway Act 1871 the time for completing the said railway and works was further extended to the twenty-ninth day of June one thousand eight hundred and seventy-four and the said railway was eventually

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completed and opened for traffic in the year one thousand eight hundred and seventy-three: A.D. 1901.

And whereas by the East and West Junction Railway Act 1874 the East and West Company to enable them to keep open their railway and to work it to better advantage and for the payment of debts and liabilities of the Company as therein mentioned were authorised to create and issue to an amount not exceeding one hundred thousand pounds first debenture stock B at a discount of thirty per centum having a fixed and perpetual preferential interest not exceeding six per centum per annum and having a priority over all other debenture stocks created and issued as hereinbefore recited other than the first debenture stock also hereinbefore mentioned: 37 & 38 Vict.
c. cxviii.

And whereas the East and West Company were unable to raise any money by the creation of any of the said first debenture stock B or to issue any part thereof except so far as the same was accepted by certain creditors of such Company:

And whereas on the twenty-third day of January one thousand eight hundred and seventy-five by order of the Chancery Division of the High Court a receiver of the said Company was appointed:

And whereas on the fourteenth day of January one thousand eight hundred and eighty-one by order of the Chancery Division of the High Court the receiver appointed as aforesaid and four other persons named in such order were appointed joint managers of the undertaking of the East and West Company and such four other persons were subsequently also appointed receivers:

And whereas the East and West Company have not been able to raise any funds by the issue of capital since the year one thousand eight hundred and seventy-one and their resources shortly afterwards being exhausted their railway was only completed with the aid of creditors to some of whom Lloyds' bonds have been issued and since the opening thereof for traffic it has only been carried on by similar aid and advances obtained by the receivers and managers and other assistance rendered to them And in the year one thousand eight hundred and eighty-two with the object of preventing the abandonment of the said railway and to assist in providing means for carrying it on and particularly for the promotion of necessary extensions of the system and measures generally for its development and in order to avoid any conflict or question of right or priority a large proportion of the first debenture stockholders of the East and West Company severally waived their claims to priority as against creditors and surrendered and transferred the interest

A.D. 1901. — amounting to eighty thousand pounds or thereabouts on their respective holdings to the managers above mentioned for application in their discretion for the purposes above mentioned and on the strength of this arrangement the railway has been carried on and the interests of its proprietors ever since supported with the aid of the holders of Lloyds' bonds and other creditors :

36 & 37 Vict.
c. ccxlv.

And whereas by the Evesham Redditch and Stratford-upon-Avon Junction Railway Act 1873 the Evesham Redditch and Stratford-upon-Avon Junction Railway Company (hereinafter called "the Evesham Company") were incorporated and authorised to make a railway from Stratford in the county of Warwick by means of a junction with the railway of the East and West Company to Salford Priors in the same county and terminating by a junction with the railway of the Evesham and Redditch section of the Midland Railway Company and were also empowered to create and issue a share capital of ninety thousand pounds by means of "preferred" and "deferred" half shares and also to borrow in respect thereof a sum not exceeding in the whole thirty thousand pounds :

And whereas the Evesham Company's Railway was promoted by the proprietors of and persons interested in the development of the East and West Company who subscribed the capital for its construction without any provision for interest and carried it out to completion and opening within the time limited by the said Act of 1873 :

And whereas by the said Act of 1873 and under an agreement scheduled thereto the East and West Company undertook upon the terms and conditions therein mentioned the working and management of the railway of the Evesham Company and also by the said Act acquired running powers over the said section of the Midland Company's railway between Evesham and Redditch :

And whereas the railway of the Evesham Company was duly opened for traffic in the year 1879 and since that date up to the present time has been worked and maintained by the East and West Company or by the joint committee hereinafter mentioned as part of their system :

And whereas nothing has ever been paid to the Evesham Company in respect of their railway out of the receipts therefrom or otherwise by either the East and West Company or the joint committee and consequently the Evesham Company have never been in possession of any income wherewith to pay creditors or any dividend on their

capital or the interest on their debentures which became repayable in the year 1885 : A.D. 1901.

And whereas by the Evesham Redditch and Stratford-upon-Avon Junction Railway Act 1885 the Evesham Company were authorised in order to satisfy certain of their liabilities to creditors and persons entitled to arrears of debenture interest of such Company as therein mentioned to create and issue debenture stock not exceeding the sum of twenty thousand pounds but the said Company has not been able to raise any money by the issue of such stock :

And whereas receivers and managers of the undertaking of the Evesham Company were appointed by the High Court on the second day of January one thousand eight hundred and eighty-six :

42 & 43 Vict.
c. ccxxiii.

And whereas by the Easton Neston Mineral and Towcester Roade and Olney Junction Railway Act 1879 the Company incorporated thereby (hereinafter called "the Midland Junction Company") were authorised to make work and maintain certain railways for (inter alia) connecting the railways of the East and West Company with the London and North Western Railway near Roade Station and the Bedford and Northampton section of the Midland Railway and to issue and raise a share capital therein mentioned amounting to two hundred and twenty thousand pounds and in respect thereof to borrow the sum of seventy thousand three hundred pounds :

And whereas the Midland Junction Company were promoted with the object of assisting the East and West Company and affording in connection with that Company's railway and the Evesham Railway a continuous communication eastward and westward from the system of the Midland at Olney to their system at Broom and on that ground the Midland Junction Railway was supported by the proprietors of and persons interested in the development of the East and West and Evesham Companies who contributed largely towards its promotion :

And whereas by the said Act of 1879 it was provided that the Midland Junction Company and any company or persons working the railways of that company or any part thereof might run over work and use and levy tolls upon (A) the East and West Railway and (B) the Evesham Railway And by the same Act the Midland Junction Company and the East and West Company were respectively empowered to enter into and carry into effect agreements with respect to the working use management and maintenance by the two companies or either of them of their respective railways

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A.D. 1901. — and works the supply and maintenance of engines stock and plant for the purposes of any such agreement the transmission of traffic collection of tolls and rates and other incidental matters :

45 & 46 Vict.
c. ccix. And whereas by the Stratford-upon-Avon Towcester and Midland Junction Railway Act 1882 the Midland Junction Company were authorised to change the name of their company to the Stratford-upon-Avon Towcester and Midland Junction Railway Company and to reduce their share capital to two hundred thousand pounds and their borrowing powers to sixty-six thousand pounds :

46 & 47 Vict.
c. ccxxviii. And whereas by the Stratford-upon-Avon Towcester and Midland Junction Railway Act 1883 it was provided that the Midland Junction Company might equip improve and lay down rails upon the East and West Railway and might provide any additional land required for that purpose in order to fit and adapt it as a single line and the works buildings and conveniences connected therewith to the conveyance and accommodation of passengers as well as goods and mineral traffic And it was provided that interest at the rate of five per centum per annum on any money expended by the Midland Junction Company under the provisions of that Act upon or in respect of the East and West Railway should be charged upon and paid out of the tolls rates income and revenue derived from or accruing in respect of that railway in priority to all debts and claims secured or unsecured owing by or made against the East and West Company other than those incurred after the passing of that Act in respect of the working expenses of that company and excepting claims in respect of land And that the railway of the Midland Junction Company and the East and West Railway should be worked maintained and managed by a joint committee as therein mentioned as if those railways formed one railway That the Midland Junction Company should provide all such engines carriages waggons and plant in addition to those possessed by the East and West Company as might be necessary and proper for efficiently working the traffic on the two railways as therein mentioned And by the said Act it was also provided that the entire capital of the Midland Junction Company should as therein mentioned constitute a first charge upon the proportion of traffic receipts attributable to the East and West Company's mileage And that the joint committee should have and enjoy and might exercise all the rights powers and privileges whatsoever vested in the Midland Junction Company or the East and West Company except as to capital or internal administration And by such Act the Midland Junction Company were also empowered to increase

and regulate their share capital and borrowing powers so as to raise by shares in addition to the sums mentioned in the last recited Act the sum of one hundred and twenty thousand pounds and in respect thereof to borrow the sum of forty thousand pounds and to attach a preferential dividend to one hundred thousand pounds of the share capital authorised by the Act of 1879 as reduced by the Act of 1882: A.D. 1901.

And whereas by the Stratford-upon-Avon Towcester and Midland Junction Railway Act 1885 the Midland Junction Company were authorised to divert a portion of their railways and certain agreements or deeds in relation to their expenditure in and towards the restoration and equipment of the railway of the East and West Company were confirmed: 48 & 49 Vict.
c. cxliii.

And whereas by the Stratford-upon-Avon Towcester and Midland Junction Railway Act 1887 after reciting that at the date of the passing of the said Act the Midland Junction Company had expended on the equipment and reconstruction of the railway of the East and West Company the sum of one hundred and sixty thousand pounds or thereabouts which sum under the Acts of 1883 and 1885 and the agreements hereinbefore referred to was charged upon the undertaking of the East and West Company in priority to all other debts and claims and was called rentcharge guaranteed shares and that the Midland Junction Company had in addition thereto expended upon the construction of the railway authorised to be made by them upwards of eighteen thousand pounds but in consequence of the insolvency of contractors the works had been stopped and they had been unable to raise money for the completion of their railway the Midland Junction Company were further authorised to create and issue debenture stock not exceeding two hundred thousand pounds with a rate of interest not exceeding five per centum which debenture stock should be a first charge upon the undertaking of the Midland Junction Company and rank in priority to such rentcharge guaranteed and all other shares and was also constituted as therein mentioned a first charge upon the proportion of traffic receipts attributable to the East and West Company's mileage And by such Act all powers of the said Company of raising money whether by shares or borrowing under any of their hereinbefore recited Acts then unexercised were extinguished and the time for the completion of their railway was extended: 50 Vict. sess.
2. c. xiv.

And whereas by the Stratford-upon-Avon Towcester and Midland Junction Railway Act 1889 the time of completion of the railways 52 & 53 Vict.
c. lxxvi.

A.D. 1901. of the Midland Junction Company was extended to the fifteenth
— day of August one thousand eight hundred and ninety and it was
provided that certain of the railways authorised by that Company's
Act of 1879 should be abandoned :

And whereas the railway of the Midland Junction Company was
duly completed and opened for traffic and since the opening thereof
that railway and the railway of the East and West Company and
also the railway of the Evesham Company have been worked
together as one railway under the management of the joint
committee hereinbefore mentioned forming a complete system of
about sixty miles in length extending from Olney on the Midland
Railway in the east to Broom on the same railway in the west and
having junctions with the London and North Western Railway at
Blisworth and also at Roade and with the Great Central Railway
at Woodford and with the Great Western Railway at Fenny
Compton and also at Stratford-upon-Avon and capable of being
easily connected with the Metropolitan Railway at Verney Junction
with which an indirect connection through the London and North
Western Railway already exists :

And whereas a receiver of the undertaking of the Midland
Junction Company was appointed by the High Court on the twenty-
seventh day of May one thousand eight hundred and ninety-eight :

And whereas a statement of the debenture stock and share
capital of the companies is set forth in the First Schedule to
this Act :

And whereas for some years the joint committee have only been
enabled to keep up an adequate service of trains having regard to
the requirements of the districts served by the railways by devoting
practically the whole of the tolls and receipts of the companies'
undertakings to the mere running expenses but they have not been
able to set aside any fund for the renewal of the permanent way
rolling stock or extension of the works or to provide for any future
requirements of the system nor to pay any interest on the debenture
stocks or shares or the floating debts And at the present time
irrespective of interest there are preferential amounts owing chiefly
to creditors of the East and West and Evesham Companies aggre-
gating to upwards of one hundred thousand pounds and also the
interest overdue on the floating debt and capital of the three
companies aforesaid which amounts to upwards of one million
pounds and in consequence of the present unremunerative results
of the undertakings the working of them on the existing basis will
shortly become impracticable :

And whereas there was due and owing on the first day of January A.D. 1901. last for arrears of interest to the holders of the Midland Junction Company's debenture stock and other capital (including their rent-charge guaranteed shares the proceeds of which amounting to one hundred and sixty thousand pounds they expended on the reparation and equipment of the East and West Railway) upwards of two hundred and thirty thousand pounds which by virtue of the charge to that effect hereinbefore recited should have been paid out of the mileage proportion of receipts of the East and West Company in priority of any holding in that company And no means exist for obtaining any payment in respect thereof or of the debenture stock and other capital from which such interest arises except by sale of the undertakings of the Midland Junction and East and West Companies :

And whereas numerous efforts have from time to time been made to merge the said railways or certain of them in the adjoining trunk lines and to support extensions designed with that object which have been frustrated owing chiefly to the territorial arrangements existing between the main line companies in consequence of which the full benefit to the public of the geographical position of the railways has never been obtained and such railways have been deprived of the through main line traffic which should naturally have passed over them :

And whereas the closing of the railways would result in great loss and inconvenience not only to the neighbourhood immediately affected but to the public generally and to some of the main line railway companies some of whose traffic passes over the said railways :

And whereas neither the holders of debenture stocks and debentures nor the shareholders of any of the companies have any inducement to continue and maintain the independent working of their respective undertakings under a joint management neither is there any possibility of obtaining the sums requisite to meet the expenses of renewal and development and under existing circumstances there is no probability that the receipts of the railways can produce any interest or dividend on any part of the present capital:

And whereas it would be of advantage to the neighbourhood through which the railways pass and to the public generally and also to the three companies aforesaid that the railways should be incorporated with and form part of the railway system of one of the main line railway companies aforesaid with which they are already in connection or with which they could readily be connected :

A.D. 1901. And whereas it is expedient for the purposes aforesaid that the undertakings of the three companies aforesaid should be sold to one of the main line railway companies aforesaid:

And whereas owing to the numerous complications which exist it will be impossible to carry out any sale or make any distribution of the purchase consideration on the basis of giving effect to the strict rights and legal priorities of the various parties interested And it is expedient that the rights and claims of all parties to the overdue interest of every kind amounting as hereinbefore mentioned to upwards of one million pounds should be abandoned and altogether excluded from consideration And that the joint committee with the consent as hereinafter provided should be authorised to sell as aforesaid the undertakings of the Midland Junction and East and West Companies and with or without the undertaking of the Evesham Company aforesaid for such a sum as may be agreed between them and the Purchasing Company or by way of consideration for such an amount as may be agreed on of shares or stock of the Purchasing Company or of a special stock to be created and issued by the Purchasing Company as hereinafter provided and that the price aforesaid whether in money or in shares or stock or partly of one and partly of the other to be received in respect of such sale should be distributed and that the three companies whose undertakings shall be so sold should cease to exist as hereinafter provided:

And whereas the High Court has approved the application to Parliament for this Act and has sanctioned the expense thereof:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title. 1. This Act may be cited as the Midland Counties Junction Railways (Sale) Act 1901.

Incorporation of Acts. 2. Parts I. II. and III. of the Companies Clauses Act 1863 relating respectively to the cancellation and surrender of shares additional capital and debenture stock (as amended by subsequent Acts) and Part V. (relating to amalgamation) of the Railways Clauses Act 1863 are so far as applicable to incorporated with and form part of this Act.

3. In this Act the following words and expressions have the respective meanings hereinafter assigned to them respectively unless there be something in the subject or context repugnant to such construction:—

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Interpreta-
tion.

“The Midland Junction Company” means the Stratford-upon-Avon Towcester and Midland Junction Railway Company;

“The East and West Company” means the East and West Junction Railway Company;

“The Evesham Company” means the Evesham Redditch and Stratford-upon-Avon Junction Railway Company;

“The companies” means the Midland Junction Company the East and West Company and the Evesham Company;

“The Purchasing Company” means one or more of the main line railway companies who under the provisions of this or any subsequent Act are empowered to purchase the companies’ undertakings from the joint committee;

“The joint committee” means the joint committee appointed by the Stratford-upon-Avon Towcester and Midland Junction Railway Act 1883;

“The companies’ undertakings” or “the undertaking” or “the railways” means the undertakings railways sidings stations works approaches and conveniences lands buildings estates plant rolling stock and properties whether of a real or chattel nature and all the rights powers and privileges whether over their own railways and works or over other undertakings of or to which the companies by virtue of their recited Acts or otherwise howsoever immediately before the passing of this Act were seized possessed or in anywise entitled.

4. The joint committee may with the consent in writing of each member thereof and of the receiver of the Midland Junction Company and of the managers and receivers of the East and West Company but subject to the limitations and provisions hereinafter contained offer the undertakings of the Midland Junction and East and West Companies and in addition thereto if they so determine of the Evesham Company for sale and sell the same subject as above mentioned and subject also to the sanction of Parliament being obtained by the Purchasing Company or companies to any one of the following main line railway companies or to any two or more of such companies jointly (that is to say):—

Power of
joint com-
mittee to sell
undertaking.

The Midland Railway Company;

The Great Western Railway Company;

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The London and North Western Railway Company ;

The Great Central Railway Company :

And the joint committee and receiver and managers and receivers above mentioned with the like consent may subject as aforesaid accept from the Purchasing Company as the consideration for such sale and purchase such sum of money as may be agreed between the joint committee and receiver and managers and receivers above mentioned and the Purchasing Company or such an amount of shares or stock of the Purchasing Company or of a special stock to be created and issued by such Purchasing Company as a rent-charge upon the undertaking of the companies sold and purchased as aforesaid or a consideration partly in money or partly in shares or stock or partly in special stock as may be agreed between the joint committee and receiver and managers and receivers above mentioned and the Purchasing Company Provided always that the bidding or offer of any such Purchasing Company shall not be rejected on the ground that such company is not at the time legally authorised to effect the purchase but such bidding or offer may be accepted subject to such Purchasing Company obtaining in the next ensuing or any subsequent session of Parliament the necessary powers for carrying into effect such sale and purchase :

Provided also that no sale shall without the consent in writing of Charles William Bartholomew Richard Donald Bain and William Howard Gray be made which does not secure the payment to the said Charles William Bartholomew Richard Donald Bain and William Howard Gray in respect of the twenty-six thousand pounds debenture stock of the East and West Company held by them of at least five thousand pounds in cash :

Provided further that in the event of the joint committee ceasing to manage and work the undertakings in consequence of a sale under this Act the reservation in their favour in respect of the running powers over the East and West Railway conferred upon the Great Central Railway Company under section 71 of the Manchester Sheffield and Lincolnshire Railway Act 1895 shall also cease and the proviso at the end of subsection 1 of the said section shall determine and be of no effect.

Transferred
undertaking.

5. If the sanction of Parliament to the purchase is obtained from and after the payment of the consideration the undertaking shall be vested in the Purchasing Company subject to all the obligations and liabilities of the companies under the recited Acts but freed and discharged from all contracts agreements debts liabilities and engagements of the companies :

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**Powers of
companies
to be ex-
ercised by
Purchasing
Company.**

Application
of purchase
money or
considera-
tion.

- tion.

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A.D. 1901. — or made by them to any of the officials or other persons employed by them either in respect of past engagements or whose assistance may be dispensed with or whose remuneration may be diminished :

(4) And the balance shall be apportioned amongst the several companies and the amounts apportioned to them shall be distributed amongst their respective creditors holders of debentures debenture stock and shares on the basis of the principal amounts due to them and of their capital holdings (exclusive as hereinbefore mentioned of any interest whatever) as provided by the Second Schedule.

Discharge of receivers and managers.

8. As soon as the distribution of the purchase moneys or other consideration in the manner provided by the Second Schedule hereto shall have been completed the receivers and managers appointed by the High Court shall be discharged.

Companies to cease to exist.

9. When and so soon as the sale of the undertaking is completed and the consideration distributed the companies shall each and all of them cease to exist.

Saving for Midland Junction Company.

10. Until the sale of the undertakings is completed nothing in this Act contained shall prejudice limit or affect the rights of the Midland Junction Company and their debenture stockholders and shareholders in regard to the railway of the East and West Company or the tolls rates income and revenue arising from the joint working of the railway of the Midland Junction Company with the railway of the East and West Company under the Acts of 1883 and 1887.

Provision as to general Railway Acts.

11. Nothing in this Act contained shall exempt the undertaking or the Purchasing Company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by the recited Acts.

The SCHEDULES referred to in the foregoing Act.

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THE FIRST SCHEDULE.

EAST AND WEST COMPANY—

	£	£	£
1st debenture stock (1869)	399,901		
1st debenture stock B (1874)	70,098		
2nd debenture stock (1869)	100,000		
3rd debenture stock (1869)	98,688		
		668,687	
Shares (1864)	—	—	300,000

EVESHAM COMPANY—

Debentures (1873)	30,000		
Debenture stock (1885)	10,900		
		40,900	
Preferred half-shares (1873)	—	—	45,000
Deferred half-shares (1873)	—	—	45,000

MIDLAND JUNCTION COMPANY—

Debenture stock (1887)	200,000	200,000	
Rentcharge (guaranteed) shares 1883-5	—	—	160,000
Preferred shares (1883-5)	—	—	15,350
		£909,587	£565,350

TOTAL

£1,474,937

Holders of Lloyds' bonds and other creditors upwards

100,000

TOTAL

£1,574,937

(Representing an average total per mile of £30,287.)

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THE SECOND SCHEDULE.

PARTICULARS OF APPORTIONMENT OF PURCHASE CONSIDERATION
AMONGST THE SELLING COMPANIES AND OF DISTRIBUTION
AMONGST THEIR RESPECTIVE CREDITORS HOLDERS OF DEBEN-
TURES DEBENTURE STOCK AND SHARES.

PART I.—THE EVESHAM COMPANY.

If the sale shall comprise the undertaking of the Evesham Company the creditors and the holders of debentures debenture stock and shares of that Company shall be entitled to receive a sum in cash or the equivalent thereto in a sufficiently guaranteed stock of the Purchasing Company bearing interest at three pounds per centum per annum in the following proportions:—

Obligations or Authorised Capital.					Cash to be paid or New Stock to be issued.
Description.					Rate per Cent.
(A)	Preferential obligations and debts	-	-	-	Par
(B)	Debentures (1873)	-	-	-	Par
(C)	Debenture stock (1885)	-	-	-	75 per cent.
(D)	Preferred half-shares (1873)	-	-	-	20 per cent.
(E)	Deferred half-shares (1873)	-	-	-	10 per cent.

The foregoing scheme of distribution shall take effect so far as the parties affected by it are concerned and be obligatory on them subject only to the terms of sale of the several undertakings as a whole being confirmed in the following manner viz. by resolutions approved by holders of three-fourths in nominal value of the debts debentures and debenture stock of the Company represented either in person or by proxy at separate meetings of each class specially convened for the purpose in the manner prescribed for convening general meetings of the Company and in addition by a circular addressed to each creditor debenture holder and debenture stockholder at his last known or usual address and sent by post to such address or delivered to him not less than ten days before the holding of any such meeting and any creditor or

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Provided always and it is hereby declared that it shall be lawful for the creditors and holders of debentures debenture stock and shares of the Company at separate meetings of each class specially convened for the purpose by resolutions approved by holders of three-fourths in nominal value of the debts debentures debenture stock and shares represented either in person or by proxy at such meetings respectively to agree to accept any lesser proportion of purchase consideration than that above mentioned and also to determine as to its distribution Every such meeting as aforesaid shall be convened in the manner prescribed for convening general meetings of the Company and in addition by a circular addressed to each creditor and holder of debentures debenture stock and shares at his last known or usual address and sent by post to such address or delivered to him not less than ten days before the holding of any such meeting And any creditor or holder of debentures or debenture stock may appoint any other creditor or holder of debentures or debenture stock as his proxy to represent him at any such meeting and to vote thereat Every such meeting shall be presided over as chairman as regards the creditors and holders of debentures or debenture stock by one of the managers or receivers of the Company and as regards the shareholders by the chairman in the prescribed manner.

PART II.—THE MIDLAND JUNCTION COMPANY.

Subject to the provisions of Part I. should the sale comprise the undertaking of the Evesham Company the creditors and holders of debenture stock and shares of the Midland Junction Company shall in the first place be entitled to receive a sum in cash or the equivalent thereto in a sufficiently guaranteed stock of the Purchasing Company bearing interest at three pounds per centum per annum in the following proportions :—

Obligations or Authorised Capital.	Cash to be paid or New Stock to be issued.
Description.	Rate per cent.
(A) Preferential obligations and debts - - - -	Par.
(B) Debenture stock (1887) - - - -	Par.
(C) Rentcharge guaranteed shares (1883-5) - -	60 per cent.
(D) Preferred shares (1883-5) - - - -	60 per cent.

A.D. 1901.

Provided always and it is hereby declared that it shall be lawful for the creditors and holders of debenture stock and shares of the Company at separate meetings of each class specially convened for the purpose by resolutions approved by holders of three-fourths in nominal value of the debts debenture stock and shares represented either in person or by proxy at such meetings respectively to agree to accept any lesser proportion of purchase consideration than that above mentioned and also to determine as to its distribution. Every such meeting as aforesaid shall be convened in the manner prescribed for convening general meetings of the Company and in addition by a circular addressed to each creditor holder of debenture stock and shares at his last known or usual address and sent by post to such address or delivered to him not less than ten days before the holding of any such meeting. And any creditor or holder of debenture stock may appoint any other creditor or holder of debenture stock as his proxy to represent him at any such meeting and to vote thereat. Every such meeting shall be presided over as chairman as regards the creditors and debenture stockholders by the receiver of the Company and as regards the shareholders by the chairman in the prescribed manner.

PART III.—THE EAST AND WEST COMPANY.

The remainder of the purchase consideration shall belong to and be distributed amongst the holders of the preferential obligations Lloyds' bonds and other debts debenture stocks and shares of the above Company and according to the following scheme of distribution which shall take effect so far as the parties affected by it are concerned and be obligatory on them in case of a sale.

In the first place the preferential obligations Lloyds' bonds arrears of working expenses and other debts for payment of which in priority up to the amount of eighty thousand pounds provision was made by the first debenture stockholders as hereinbefore mentioned (but less any interest thereon) shall be ascertained and discharged and paid by the managers or a majority of them who shall be entitled to retain and pay themselves by way of remuneration and in full satisfaction for their services as managers and receivers and directors and members of the joint committee the sum of three hundred pounds per annum to be divided amongst them as they shall determine. If any creditor or claimant shall feel aggrieved by the refusal of the managers to admit his claim he may thereupon apply to the Court in the Receivership proceedings to vary their decision and in that case the decision of the Court shall subject to appeal be binding and conclusive. Provided always and it is hereby declared that it shall be lawful for the creditors at a meeting specially convened for the purpose by resolution approved by holders of three-fourths in nominal value of the debts represented either in person or by proxy at such meeting to agree to accept any lesser payment than that above provided. Every such meeting shall be convened in the manner prescribed for convening general meetings of the Company and in addition by a circular addressed to each creditor at his last

A.D. 1901.

Appendix 1

Description of Capital.	Proportions of Balance of Purchase Consideration attributable to each £100 Holding.
(A) First debenture stock (1869) - -	$\frac{18\frac{3}{4}}{100,000}$
(B) First debenture stock B (1874) - -	$\frac{11\frac{4}{10}}{100,000}$
(C) Second debenture stock (1869) - -	$\frac{5\frac{1}{2}}{100,000}$
(D) Third debenture stock (1869) - -	$\frac{4}{100,000}$
(E) Shares (1864) - - -	$\frac{2\frac{1}{2}}{100,000}$

Printed by EYRE and SPOTTISWOODE,
FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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